

See also: The Ten Commandments and Mosaic law 20–23 ■ Aristotle and natural law 32–33 ■ The *Lex Aquilia* 34
 ■ Ulpian the Jurist 36–37 ■ The origins of canon law 42–47 ■ Thomas Aquinas 72–73



marriage and family life, where the Church authorities felt they had a greater claim than the civil law.

The canon law (law relating to the Christian Church) that developed in the centuries after Constantine had a piecemeal nature. The decisions of a series of Christian councils, such as the First Council of Nicaea in 325^{CE}—many of them concerned with Church discipline, such as forbidding priests to live with women to whom they were not related—were supplemented by ad hoc decretals (decrees concerning points of canon law).

A lack of consistency

Only in the very particular case of monastic rules—such as those of St. Benedict, written in the early 6th century—was there a consistent set of regulations governing all aspects of religious life. And there was very little in the way of legal reasoning to justify those regulations that had been clearly decreed.

A stained-glass window in Worms Cathedral, Germany, depicts Burchard of Worms. His *Liber decretorum* was one of the most significant collections of canon law before Gratian's.

The inconsistency of canon law mirrored that of Roman civil law, alongside which it had developed, where successive pieces of imperial legislation sat alongside a mass of juristic writing to produce a legal framework that was both incomplete and contradictory.

Compiling canon law

Attempts were made early on to bring some form of order to this chaos, beginning with the *Apostolic Canons*, assembled in the early 6th century by Dionysius Exiguus, a scholar who worked for Pope John I in Rome. This brought together canons of a number of Church councils on issues such as the date on which Easter ought to be celebrated.

The 9th and 10th centuries brought a new sense of urgency to attempts to gather together the vast body of canon law. This era of the *jus antiquum* ("old law") saw the compilation of collections such as the *Libri duo de synodaliibus causis et disciplinis ecclesiasticis* (*Two Books Concerning Synodical Causes and Church Discipline*) by German abbot Regino of Prüm in 906 and the *Liber decretorum* (*Book of Decretals*) by German bishop Burchard of Worms, which was compiled around 1020. The *Liber decretorum* in particular gathered together previous ecclesiastical decisions about penance, such as whether a man needed to commit penance for killing on the battlefield and whether

the penance should be more severe if he killed without the command of a legitimate ruler.

Despite the production of such compilations, by the early 12th century, there was still no systematic treatise that attempted to make coherent sense of the broad body of canon law in the way that Justinian's *Corpus juris civilis* (*Body of the Civil Law*) had done for Roman civil law (see box, p.62). The *Concordia discordantium canonum* (*Harmony of Discordant Councils*) by the Italian legal scholar Gratian filled this gap. It consisted of three parts dealing with questions of Church administration, ecclesiastical organization, and the sacraments, and it cited authorities as diverse as Church councils, papal decretals, Roman imperial rescripts (written replies from emperors to legal queries), and the works of 7th-century Spanish encyclopedist Isidore of Seville.

Little is known about Gratian, the author of the collection later known as the *Decretum Gratiani* (*The Decretum of Gratian*). He may have been a Benedictine monk or possibly a bishop, but »

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Justice is the firm and continuous desire to render to everyone that which is his due.

Justinian

Roman emperor (c. 482–565)

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